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File No.: EXP202305337

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

FACTUAL BACKGROUND

FIRST: On April 5, 2023, a complaint was filed with the Spanish Agency for Data Protection (AEPD). The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons on which the complainant bases the complaint are as follows:

The complained party has installed a surveillance camera at ***ADDRESS.1 ***TOWN.1, which focuses on the property of the complainant located on an upper floor. It is claimed that the camera is activated every time the complained party enters and exits their home or when they are on the terrace. Along with the complaint, eight photographs taken from a terrace are submitted, showing a residential complex with distinct homes. One of the homes has an entrance through a private exterior corridor adorned with vegetation. The perimeter of the corridor is bordered by a white wall that adjoins an asphalted roadway where vehicles are present, within the limits of the urbanization. The interior side of the wall has, at its upper edge, a surveillance camera oriented towards the aforementioned corridor. Depending on the angle of the photograph, the camera focuses on the property of the complainant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified mail, was returned by the postal service on May 19, 2023, as it had not been collected from the office, after two delivery attempts resulted in "absent" on May 10 and 11, 2023, respectively. Notwithstanding the above, the forwarding was reiterated by the same means and is recorded as notified to the complained party on June 2, 2023, as indicated in the acknowledgment of receipt in the file.

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2/7

No response has been received to this forwarding letter.

THIRD: On July 5, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On December 13, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on December 30, 2024, as recorded in the acknowledgment of receipt in the file.

SIXTH: On January 17, 2025, the complained party submitted a written statement regarding the initiation agreement as follows:

"(...) the cameras I have installed on my property do not focus on the interior of the studios I have; they focus on common areas, specifically two hallways that provide access to those studios.

I have had the need to install surveillance due to vandalism occurring in the facilities, and intruders who stayed overnight in those studios without prior notice from residents who must be identified, as

subletting studios without having them identified as required by law, since I did not want to have problems with law enforcement.

The deterioration with two tenants due to the lack of coexistence and order they had in my house led to a series of complaints to the Civil Guard of (...), I provide the names of the two people who can corroborate this with the Civil Guard (...), these individuals had to be evicted due to non-payment through judicial means, as well as the threats and complaints I received for a long time from these individuals; thanks to the surveillance I installed, I was able to present to the Civil Guard various complaints they filed against me, as well as against my family members, and the agents who came to my house never told me that they were poorly installed.

For all this that I explain, I hope it serves to clarify this great misunderstanding, since, as I indicated earlier, the cameras focus on hallways providing access to the small complex of six studios that I have in my house."

He accompanies his written statement with a photograph from January 7, 2025, showing the field of vision of three surveillance cameras through which the following is observed:

- The field of vision of the first camera shows an exterior hallway that borders a home and has vegetation. The hallway is

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3/7

is bounded by a white wall that marks the exterior perimeter of the dwelling and by a white wall corresponding to the adjacent building, which lacks terraces, windows, or other elements. On the other side of the wall marking the exterior perimeter, an undeveloped moor can be observed.

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The field of vision of the second camera shows an open-air corridor whose limits are marked by a white wall with vegetation from the adjacent building and a white wall that borders the adjacent property. The dwelling is surrounded by undeveloped land.

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The field of vision of the third camera shows an exterior access door to a dwelling. The door is green, as is some vegetation.

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: On April 5, 2023, a complaint was received against A.A.A. with NIF ***NIF.1 for having a video surveillance system in the dwelling located at ***ADDRESS.1 ***TOWN.1.

SECOND: A.A.A. has a video surveillance system on their property consisting of at least three cameras.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

C/ Jorge Juan, 6

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined, indicating:

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;”
The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

“Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means,”

2.- The images obtained may not be used for a subsequent purpose incompatible with that which motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

C/ Jorge Juan, 6

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

Also of interest, in the case of processing low-risk data, is the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended

security measures.

IV

Presumption of Innocence

Administrative Sanctioning Law, due to its specificity, applies, with some nuances but without exceptions, the principles inspiring criminal law, resulting in the clear full validity of the principle of presumption of innocence. Not in vain, Article 53.2 b) of the LPACAP recognizes the right of the presumed responsible parties to "the presumption of non-existence of administrative responsibility until proven otherwise."

Well, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

In this case, the accused party acknowledges having a video surveillance system composed of three cameras, of which it provides the fields of vision. Analyzing the images, it is observed that, according to them, the property of the accused party would border on areas apparently undeveloped and would lack neighbors on upper floors. Given the above, it cannot be asserted that any of these cameras corresponds, either by location or orientation, to the camera (installed in the interior of a property bordering developed land) reported by the complainant for allegedly excessively capturing the property of third parties.

Consequently, the application of the principle of presumption of innocence prevents attributing, in this case, an administrative infraction as the existence of incriminating evidence supporting the facts that motivate this accusation has not been obtained and verified.

Therefore, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the WARNING PROCEDURE followed against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5.1 c) of the GDPR typified in Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

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7/7

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